

► **INDUSTRY AND EXPERTS** are eagerly awaiting the report of a high-level panel set up to look into the digital competition law. The panel is expected to submit the report in August, and a Bill will be drafted based on this. With this, India will be one step closer to a law to regulate large tech firms.

The committee was set up in February, following a report by the Parliamentary Standing Committee on Finance in December 2022 on anti-competitive practices by big tech companies. It had mooted a digital competition bill to check such practices. Industry insiders and experts feel the report will have far-reaching implications. There are concerns about how well it will navigate the complexities of the sector since it encompasses everything from e-commerce to cab aggregators.

Wider consultations are required, many believe. In fact, 58 stakeholders had written to the

28 |

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Ministry of Corporate Affairs to “institute a transparent and open consultative public engagement process for the draft Digital Competition Bill”.

In the interim, the government has demarcated the roles of the Ministries of Electronics and Information Technology (MeitY) and Corporate Affairs to provide market players more clarity on supervision and regulation. In a meeting held in July, it was decided that the MCA would look into issues of competition in the digital market while MeitY would address sector-specific

COMPETITION LAW

Regulating Big Tech

Panel on digital competition law to submit report by next month; demarcation of MeitY and MCA's roles will help in regulation

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and technical issues.

Union Finance and Corporate Affairs Minister Nirmala Sitharaman and Minister of State for Electronics and Technology Rajeev Chandrasekhar discussed the law and agreed that a “whole of government approach” should be adopted.

Experts termed this a positive development. “With the MeitY coming up with a Digital India Bill and an MCA-appointed panel working on the digital competition law, there was fear [in] the industry that there would be overlaps in

regulation and stakeholders would suffer,” notes Pritha Jha, Partner at Pioneer Legal.

Meanwhile, the industry is also keeping an eye on the Supreme Court, which is expected to deliver its verdict in October in the case between Google and the Competition Commission of India over the alleged breach of the country’s competition laws. This could provide pointers to how the proposed digital competition law will be framed. **BT**

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